



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 3/27/2026
BY: **MA. JULINA B. JUTILO**
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 33RD REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON MARCH
17, 2026

PRESENT:

Hon. Jane V. Plaza		Municipal Vice- Mayor/ Presiding Officer
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REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Michael C. Escuyos		SB Member

ON OFFICIAL BUSINESS:

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ORDINANCE NO. 34
Series of 2026

**“AN ORDINANCE REGULATING THE PREPARATION AND SALE OF MEAT, POULTRY, FISH,
VEGETABLES, FRUITS, DAIRY PRODUCTS, AND OTHER FOODSTUFFS FOR PUBLIC CONSUMPTION IN
THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR, PROVIDING PENALTIES FOR VIOLATIONS
THEREOF, AND FOR OTHER PURPOSES”**

Author: Hon. Michael C. Escuyos

Enacted: All Members Present

EXPLANATORY NOTE

This Ordinance is being proposed to address the growing concern for food safety and cleanliness in the Municipality of Carmen, Surigao del Sur. As more food vendors and eateries open-including some who display and sell meat outside their homes and with the continued activity in the town’s only public market, it has become important to set rules for how food is prepared, handled and sold to protect people’s health.

(Handwritten signatures)

The Ordinance covered meat, poultry, fish, vegetables, fruits, dairy products and other foodstuffs intended for public consumption. It sets sanitary standards, mandates the proper training and certification of food handlers and imposes penalties for violations such as unhygienic practices or the sale of spoiled food.

By establishing clear guidelines and promoting responsible food handling, these measures aim to reduce the risk of food borne illnesses, safeguard consumer welfare and build public trust in the local food industry.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

Section 1. TITLE- This Ordinance shall be known as the "Food Safety and Sanitation Ordinance of the Municipality of Carmen, Surigao del Sur."

Section 2. DECLARATION OF POLICY- It is hereby declared the policy of the Municipality of Carmen to:

- a. Promote and protect the health, safety and general welfare of its residents.
- b. Ensure that all food prepared and sold for public consumption is safe, hygienic, and fit for human consumption.
- c. Establish sanitary standards for the preparation, handling, and sale of food products.

Section 3. SCOPE AND COVERAGE- This Ordinance shall apply to all individuals, business establishments, vendors, processors, dealers, food handlers and all other entities involved in the preparation, handling, transport, storage and sale of:

1. Meat and meat products
2. Poultry and poultry products
3. Fish and seafood
4. Vegetables and fruits
5. Fresh dairy products
6. Other perishable foodstuffs intended for public consumption

Section 4. DEFINITION AND TERMS- For purposes of this Ordinance, the following terms are defined as follows:

1. Foodstuff- any substance, whether processed, semi-processed or raw, which is intended for human consumption.
2. Public Consumption- the sale or distribution of food items to the general public through restaurants, markets, eateries, stores, food stalls, or mobile vendors.
3. Sanitation- the application of measures intended to protect public health through cleanliness and hygiene.
4. Perishable Goods- food items that are likely to spoil, decay, or become unsafe to consume if not properly handled or stored.
5. Food Handler- any person involved in the preparation, storage, transport, or sale of food items.

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Section 5. PERMIT AND LICENSE REQUIREMENTS- No person or business shall engage in the preparation or sale of foodstuffs covered by this Ordinance without first securing:

1. A Mayor's Permit
2. A valid Health/Sanitary Permit issued by the Municipal Health Office
3. A Food Handler's Certificate (for all personnel directly handling food).

These permits must be renewed annually and displayed conspicuously at the place of business.

Section 6. SANITARY REQUIREMENT- All establishments and vendors shall:

1. Possession of a valid sanitary permit issued by MHO.
 - a. Maintain cleanliness and sanitation of food premises, utensils and equipment at all times.
 - b. Ensure food items are stored at appropriate temperatures.
 - c. Protect food from contamination (flies, dust, rodents, etc.).
 - d. Use clean water in food preparation and washing.
 - e. Dispose of food waste properly and regularly.
 - f. Provide hand washing and sanitation facilities for food handlers.
 - g. Ensure all food handlers are medically examined annually and free from contagious diseases.
2. All food handlers must have a valid Health Certificate renewed annually.
3. Food shall be prepared in clear surroundings and protected from contamination.
4. New and cooked food shall be stored separately to avoid cross-contaminations.
5. Meat and poultry products shall be secured only from authorized slaughterhouses or accredited suppliers.
6. Fish, vegetables and fruits must be fresh and sale for consumption.
7. Dairy and other perishable products shall be properly refrigerated.
8. Utensils, tables and equipment must be cleared and sanitized regularly.
9. Waste disposal shall follow proper garbage segregated and sanitary freshness.
10. Follow meat inspection and food safety regulations of DA and Local Government.

Section 7. SPECIFIC REGULATIONS PER FOOD CATEGORY-

A. Meat and Poultry:

1. Must be slaughtered in a licensed slaughterhouse inspection by the Meat Inspector.
2. No double-dead (botcha) meat shall be sold.



3. Must be displayed in clean, well-ventilated areas with fly protection.
4. Keep meat and poultry clean and properly covered at all times.
5. Use clean tools and equipment (chopping boards, knives, trays, etc.).
6. Display meat in clean, fly-proof and well-ventilated areas.
7. Store meat at the right temperature-frozen or chilled to prevent spoilage.

B. Fish and Seafood:

1. Only fresh fish shall be sold (no foul odor, discoloration).
2. Spoiled or decomposing fish must be disposed of properly.
3. Ice used for fish preservation must be made from potable water.

C. Vegetables and Fruits:

1. Must be free from visible spoilage and chemical contamination.
2. Vendors must use clean containers and elevated displays to avoid contamination from the ground.

D. Dairy Products:

1. Must be sold within their expiration period.
2. Unpasteurized milk must be clearly labeled and only sold under supervision of the Municipal Health Office.
3. All dairy items must be stored at refrigerated temperature.

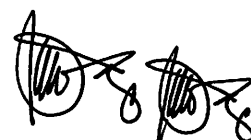
Section 8. MOBILE AND STREET FOOD VENDORS-

1. Must comply with all applicable provisions of this Ordinance.
2. Must wear clean uniforms and hairnets/caps.
3. Mobile carts and equipment must be washable, rust-free and cleaned daily.
4. Vendors must undergo regular medical check-ups and training on basic food safety.

Section 9. INSPECTION AND ENFORCEMENT-

1. The Municipal Health Office, sanitary personnel in coordination with the Municipal Agriculture Office, Market Supervisor and Barangay Officials shall conduct regular and unannounced inspections.
2. Authorized personnel may confiscate, condemn, or dispose of any food item found unsafe or unfit for consumption.
3. Inspection teams shall issue Sanitation Violation Notices and recommend sanctions where necessary.

Section 10. PENALTIES- Any person or entity found violating any provision of this Ordinance shall be penalized as follows:



- First Offense** - Warning and mandatory seminar on food safety
- Second Offense** - Fine of One Thousand Pesos (Php1,000.00) and/or suspension of business permit for up to seven (7) days
- Third Offense** - Fine of Two Thousand Five Hundred Pesos (Php2,500.00) and/or revocation of business permit, confiscation of products and possible filing of legal charges

Section 11. APPROPRIATIONS- Funds necessary for the implementation of this Ordinance, including information drives, training and enforcement, shall be sourced from the Municipal Health Office’s Annual Budget or Supplemental Appropriations as may be approved by the Sangguniang Bayan.

Section 12. SEPARABILITY CLAUSE- If any provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions not be affected shall continue in full force and effect.

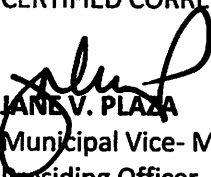
Section 13. REPEALING CLAUSE- All Ordinances, rules, or regulations inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

Section 14. EFFECTIVITY- This Ordinance shall take effect fifteen (15) days after its approval.

ENACTED this 17th day of March, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:

JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:

NESTOR S. VALEROSO
Municipal Mayor
3-27-2026